

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY 2
Cotabato City

First Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 05

Bangsamoro Autonomous Region in Muslim Mindanao

Parliament
BILLS AND INDEX DIVISION

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Name: ADULTH DAPATUN Signature: [Signature]
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Introduced by:
MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

Co-authored by:
MP Atty. Laisa M. Alamia, RN, CESE, MNSA; MP Amilbahar S. Mawallil; MP Atty. Rasol Y. Mitmug, Jr., CESE; MP Engr. Don Mustapha A. Loong, JD, CESE; MP Atty. Suharto M. Ambolodto, CSEE, MNSA; and MP Rasul Enderez Ismael

AN ACT
CREATING A SUB-DISTRICT ENGINEERING OFFICE FOR THE SPECIAL GEOGRAPHIC AREA (SGA) TO BE KNOWN AS THE SGA SUB-DISTRICT ENGINEERING OFFICE (SGA-SDEO), UNDER THE MAGUINDANAO 2ND DISTRICT ENGINEERING OFFICE, APPROPRIATING FUNDS THEREOF, AND FOR OTHER PURPOSES

Explanatory Note

Among the many functions of the government is to provide and manage quality infrastructure facilities and services responsive to the needs of the people. Infrastructure is crucially important to foster the region's economic development and prosperity. With this, it is necessary that government offices are readily accessible in areas that need them most.

This Act seeks to establish a Sub-District Engineering Office (SDEO) for the Special Geographic Area (SGA), covering sixty-three (63) barangays. Currently, there is no specific DEO for the SGA. The 63 barangays are scattered and located in the following:

- a. From *Pikit Municipality* (22 barangays) – Macabual, Gligli, Rajah Muda, Bagoaingud, Bulol, Kabalasan, Buliok, Barungis, Bualan, Lagunde, Panicupan, Batulawan, Fort Pikit, Pamalian, Manaulanan, Balong, Balungis, Nabundas, Gokoton, Nalapaan, Macasendeg, Nunguan;
- b. From *Pigcawayan Municipality* (12 barangays) – Lower Baguer, Balacayon, Buricain, Datu Binasing, Datu Mantil, Kadingilan, Libungan Torreta, Matilac, Lower Pangangkalan, Upper Pangangkalan, Patot, Simsiman;

- c. From *Carmen Municipality* (7 barangays) – Kitulaan, Pebpoloan, Manarapan, Langogan, Tupig, Kib-Ayao, Nasapian;
- d. From *Kabacan Municipality* (7 barangays) – Tamped, Simbuhay, Simone, Nanga-an, Buluan, Pedtad, Sanggadong;
- e. From *Midsayap Municipality* (13 barangays) – Central Labas, Malingao, Tumbras, Kapinpilan, Sambulawan, Tugal, Mudseng, Kadingilan, Nabalawag, Kadigasan, Damatulan, Olandang, Kudarangan; and
- f. From *Aleoson Municipality* (2 barangays) – Barangays Dunguan and Tapodoc.

Given the spread of the barangays from the different municipalities in Cotabato province, there is a need for a devoted office that will cater to these areas.

With the passage of this Bill, the SGA Sub-DEO will be able to provide quality public infrastructure and maintenance services in its area of jurisdiction. It is expected to bring important benefits to the lives of those residing and those who are doing business in the SGA. Improvements in the quality of infrastructure services will also help cut the cost of doing business and will result to positive economic value that can stimulate job creation, encourage private investments, improve productivity and ensure the well-being of the Bangsamoro people.

In view of the foregoing, the passage of this bill is earnestly sought.


ENGR. BAIN TAN ADIL-AMPATUAN, MNSA

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Bangsamoro Autonomous Region in Muslim Mindanao
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Be it enacted by the Bangsamoro Transition Authority Parliament assembled:

Section 1. Creation. – There shall be created, under the supervision of Ministry of Public Works (MPW), a sub-district engineering office for the Special Geographic Area (SGA) to be known as Special Geographic Area Sub-District Engineering Office (SGA-SDEO).

Section 2. Declaration Of Policy. – The Bangsamoro Government shall maintain an engineering and construction arm, which shall continuously develop its technology, for the purpose of ensuring the safety of all infrastructure facilities, and securing for all public works the highest efficiency and the most appropriate quality in construction.

Section 3. Location And Coverage. – The SGA Sub-District Engineering Office created under this Act shall be located in the Pikit, Cotabato, within SGA, and shall cover the sixty-three (63) barangays that opted to join the Bangsamoro Autonomous Region. It shall assume jurisdiction over all infrastructure and public works in the SGA.

Section 4. Functions. – The SGA Sub-District Engineering Office shall be responsible for highways, flood control, water resources development system, and other public works in the SGA and shall exercise the following functions:

- a) Implement policies, guidelines and procedures for the effective implementation of construction, and maintenance of infrastructure projects;
- b) Inspect, verify, monitor, supervise and evaluate various infrastructure projects in accordance with existing standards and guidelines;
- c) Implement various infrastructure projects in their respective areas of jurisdiction;
- d) Conduct, inspect and assess the condition of roads, bridges, and other infrastructure projects and submit a report thereon to the Ministry;
- e) Prepare, review and evaluate plans, programs of work and estimate including reports and submit a report thereon to the Ministry;
- f) Prepare, evaluate, and endorse requests for funding to the Ministry for the repair/rehabilitation of damaged infrastructure facilities brought about by calamities;
- g) Undertake the management, repair, maintenance, and rehabilitation of construction and maintenance property, plant, and equipment; and
- h) Perform such other duties and responsibilities as may be assigned by the Director-General and/or the Minister.

Section 5. Sub-District Engineering Office and Composition. – The Sub-District Engineering Office shall be established for the 63 barangays in the SGA. It shall be headed by an Assistant District Engineer who shall be responsible for the efficient and effective discharge of the duties and functions of the Sub-District Office. Within his/her defined powers, s/he shall exercise functional and administrative control and supervision over district operations. S/he shall also perform such other related duties and responsibilities as may be assigned or delegated by the Minister or as may be required by law. S/he shall be appointed by the Minister of Public Works of the Bangsamoro Autonomous Region in Muslim Mindanao.

Section 6. Staff. – Pending the approval of the plantilla and appointments of personnel, the SGA Sub-District Engineering Office shall be manned by employees of other district engineering offices in BARMM as may be assigned by the Minister of the MPW.

Section 7. Assets And Liabilities. – Construction and maintenance equipment, and other resources for the operation of the Sub-District Engineering Office shall be provided by the Ministry of Public Works in accordance with the needs of the new office.

Section 8. Appropriations. – The regular budget of the newly created SGA Sub-District Engineering Office shall be included in the total budget of MPW and which shall be allotted to the sub-district office.

Section 9. Separability Clause. – If for any cause, any part of this Act is declared unconstitutional or contrary to the provisions of Bangsamoro Organic Law, the rest of the provisions shall remain in force and effect.

Section 10. Repealing Clause. – All laws, orders, rules, and regulations which are inconsistent with the provisions of this Act, are hereby repealed, modified, superseded, or amended accordingly.

Section 11. Effectivity. – This Act shall take effect after fifteen (15) days following its full publication in a newspaper of general circulation in the Bangsamoro Autonomous Region in Muslim Mindanao.

Adopted,


MP ENGR. BANTAN ADIL-AMPATUAN, MNSA